

TENTATIVE RULINGS

FOR: July 01, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. B Zoom

Join by Video

<https://www.zoomgov.com/j/1618700612?pwd=3bjaxoPtjuWe7B7JQWBQ8muwSuMiXC.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))

**** All matters originally set in Dept. A will be heard in Dept. B ****

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

In The Matter of The Ashe Family Trust

20PR000163

VERIFIED APPLICATION OF NON-RESIDENT ATTORNEY JORDAN SURRETT TO
APPEAR PRO HAC VICE

TENTATIVE RULING: The application is GRANTED.

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SEVENTH ACCOUNT AND REPORT OF CONSERVATOR; PETITION FOR ITS SETTLEMENT; FOR APPROVAL OF CONSERVATOR’S AND ATTORNEYS’ FEES AND COSTS ADVANCED; AND FOR REDUCTION OF BOND

TENTATIVE RULING: The Petition is GRANTED, including fees, with the following change to the prayer. Pursuant to the Court’s calculation, the requested mileage fees should be reduced from the \$1,311.60 requested to \$1,300.80. (See Petition at § 8, subd. (b)(ii) [120 miles x \$0.655 is \$78.60 x 6 = \$471.60].

After a review of the matter, the Court finds the Conservator is acting in the best interest of the Conservatee. Thus, the matter is set for a Review – Biennial and for an Accounting in two years on May 12, 2028, at 8:30 a.m. in Dept. A. All accounting documents must be filed at least 30 days prior to the hearing. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

The court orders the bond requirement reduced to \$169,000.

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Estate of Erlinda C. Vidal

24PR000297

PETITION FOR TERMINATION OF THE ESTATE ON FINAL DISTRIBUTION; FOR APPROVAL OF THE FIRST AND FINAL ACCOUNT AND REPORT; FOR ALLOWANCE OF STATUTORY COMPENSATION TO ATTORNEYS AND CO-EXECUTORS; FOR REIMBURSEMENT OF COSTS ADVANCED BY CO-EXECUTORS; FOR PAYMENT OF OUTSTANDING COSTS TO ATTORNEYS; FOR PAYMENT OF POST-ACCOUNTING COSTS TO ATTORNEYS; APPROVAL OF POST-ACCOUNTING TRANSACTIONS; AND FOR AUTHORITY TO RETAIN A RESERVE FOR FINAL EXPENSES

TENTATIVE RULING: The matter is CONTINUED to July 29, 2026, at 8:30 a.m. in Dept. B to permit Executors to serve Notice of Hearing and a copy of the Petition on Rafael L. Vidal.

“The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.” (*Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05.) Rafael L. Vidal is identified in the Petition as the bother-in-law and beneficiary of decedent. However, there is no proof of service of the Petition and Notice of Hearing on Rafael L. Vidal in the Court’s file. (See Prob. Code § 1821, subd. (b), 1822, subd. (b)(2).).

Executors are directed to serve notice of the continued hearing to all those entitled thereto and to serve the Petition on Rafael L. Vidal.

Moreover, Petitioners are urged to double check the calculations of the amounts resulting from the agreed upon 20/80 split as between Candelaria LLP and Bay Area Probate and Estate